

JUSTIFICATION & APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN COMPETITION (OTFAOC)

Justification for OTFAOC Number: JA25-055

Purchase Request Number: [REDACTED]
Contract Number: HC102818C0017
Procurement Title: Commercial Satellite Communications (COMSATCOM) Engineering, Acquisition, and Programmatic Services Bridge
Estimated Value: [REDACTED]
Statutory Authority: Federal Acquisition Regulation (FAR) 6.302-1

Upon the basis of the following justification, I, as Procuring Activity Competition Advocate (PACA), hereby approve the use of OTFAOC of the proposed contractual action pursuant to the authority of 10 U.S.C. 3204(a)(1).

1. REQUIRING AGENCY AND CONTRACTING ACTIVITY:

Requiring Agency:
Defense Information Systems Agency (DISA)/Procurement Executive Office Transport (PEO Transport)
6910 Cooper Ave
Fort Meade, Maryland 20755

Contracting Activity:
DISA/Defense Information Technology Contracting Organization (DITCO)/PS8313
2300 East Drive
Building 3600
Scott Air Force Base, Illinois 62225

2. NATURE/DESCRIPTION OF ACTION(S): The nature of this action is to procure the continuation of COMSATCOM support via a bridge modification, which will be provided through a one-month firm fixed price (FFP) base period and two one-month FFP option periods to extend the period of performance (PoP) for the COMSATCOM contract HC102818C0017. The PoP for the current contract ends May 11, 2025. This extension will extend the PoP by three months, if all options are exercised. The PoP of the extension will be May 12, 2025 through August 11, 2025.

This extension will ensure continued support during the protest period of the follow-on contract/order. The COMSATCOM effort actively supports the continuity of COMSATCOM to DISA and the Department of Defense (DoD) community, by providing expertise in market trends, networking technologies, strategic and tactical communications systems, as well as,

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Controlled By: DISA
Controlled By: PSD/PS8313
CUI Category: SSEL, PROCURE
Distr
POC: [REDACTED]

engineering, acquisition, program management, and support services. The overall effort provides COMSATCOM support in the areas of operations, implementation and sustainment, information assurance, communications/computer/website security, telecommunications, acquisition, program management and requirement analysis. Fiscal Year 2025 Defense Working Capital Funds will be used. This modification will increase the current life cycle value by [REDACTED]

3. DESCRIPTION OF SUPPLIES/SERVICES: Continuity of services is required for support to PEO Transport. The COMSATCOM contract provides expertise of market trends, networking technologies, strategic and tactical communications systems, as well as engineering, acquisition, program management, and support services. The overall effort provides COMSATCOM support for operations, implementation and sustainment, information assurance, communications/computer/website security, telecommunications, systems engineering, acquisition, program management, requirement analysis, business, business process reengineering, procurement, and administration and management when providing the required support.

The current COMSATCOM contract will expire on May 11, 2025. This effort was re-competed as a small business set aside acquisition. On March 17 the follow-on contract/order HC102818D0027/HC102825F6520 was awarded. The bid protest was submitted in a timely manner to trigger an automatic suspension of performance of the follow-on contract pending resolution of the protest in accordance with FAR 33.103(c)(1). The extension of the current COMSATCOM contract will allow for continued support of this vital program during the protest period, while retaining the ability to provide a consistent level of effort for DISA PEO and its stakeholders without a break in service.

The estimated cost of support for this extension is [REDACTED]

4. IDENTIFICATION OF STATUTORY AUTHORITY: Only one responsible source and no other supplies or services will satisfy agency requirements, 10 U.S.C. 3204(a)(1), and FAR 6.302-1, and Defense Federal Acquisition Regulation Supplement 206.302-1.

5. DEMONSTRATION OF CONTRACTOR'S UNIQUE QUALIFICATIONS:

(a) *Description of events.* HC102818D0027/HC102825F6520 was competed under solicitation number 832369148. Award of HC102818D0027/HC102825F6520 was made on March 17, 2025 and the award was protested. Thereafter, a stop-work order was issued.

(b) *Justification.*

(1) Minimum Government Requirements. DISA PEO Transport and its mission partners depend on the continuity of COMSATCOM services. The services are essential to ensure on time execution of project/program schedules and deliverables and communication with deployed forces. This support includes a variety of detailed tasks and functions as they relate to transport projects and programs, such as

integrated master scheduling upkeep, management, risk assessment and risk management, acquisition support, metrics, memorandum preparation and service-level agreement development, briefings preparation at the Senior Executive Level, knowledge management support, and quality assurance processes and procedures.

Due to the criticality of these ongoing projects/programs within the directorate, no alternate contractor can develop the work force necessary to replace the current support team and achieve an initial satisfactory level of support prior to the expiration of the current task order.

- (2) Proposed sole source contractor. Due to the bid protest filed by AIX Tech, LLC, Competitive Range Solutions, LLC (CRS) is the only source that can fulfill this requirement without risk of a substantial break in service/support to DISA PEO Transport and its mission partners.
- (3) A sole-source action is necessary due to a protest filed in response to the award of the follow-on contract/order HC102818D0027/HC102825F6520. If a bid protest had not been received, this extension would not be necessary.

6. CONTRACT OPPORTUNITIES ANNOUNCEMENT/POTENTIAL SOURCES: This modification is a bridge extension of the existing COMSATCOM contract until the protest of the follow-on contract can be resolved. Solicitation number 832369148 for the follow-on contract/order was solicited using the ENCORE III Small Business Suite Indefinite Delivery Indefinite Quantity contract on October 18, 2024 as a small business set-aside. Three proposals were received. Award was made on March 17, 2025.

7. DETERMINATION OF FAIR AND REASONABLE COST: During source selection of HC102818C0017 (solicitation number 831809900), a cost/price evaluation was conducted in accordance with FAR 15.404. The contract prices were determined to be reasonable. The proposed cost/prices for the extension of COMSATCOM will be compared to the current contract prices as well as the Independent Government Cost Estimate and the proposed prices for the follow-on effort in order to determine fair and reasonableness.

8. MARKET RESEARCH: This is an extension to the existing contract COMSATCOM to ensure continued support until the protest and transition period of the follow-on contract/order HC102818D0027/HC102825F6520 are complete. Market research was conducted for the follow-on contract/order within the last 12 months. The market research identified potential sources which enabled the follow-on contract/order to be conducted as a small business set-aside.

9. ANY OTHER SUPPORTING FACTS: N/A

10. LISTING OF INTERESTED SOURCES: N/A

11. ACTIONS THE AGENCY MAY TAKE TO REMOVE OR OVERCOME BARRIERS THAT LED TO THE EXCEPTION TO FULL AND OPEN COMPETITION.

- (a) Current Contract: HC102818C0017
- (b) Status: COMSATCOM is set to expire on May 11, 2025. A competitive Small Business Set-Aside Source Selection was completed for the follow-on. Award was announced on March 17, 2025. A stop-work order was issued on March 26, 2025 due to a timely bid protest.

12. REFERENCE TO THE APPROVED ACQUISITION PLAN (AP): An AP was not required for this effort as it does not meet the dollar threshold.

TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

[REDACTED]

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

[REDACTED]

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

PROCURING ACTIVITY COMPETITION ADVOCATE APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed \$15M, this review serves as approval.

[REDACTED]